

# HOUSE . . . . . No. 3735

---

## The Commonwealth of Massachusetts

---

PRESENTED BY:

*Adrian C. Madaro*

---

*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to Massachusetts identification cards.

---

PETITION OF:

| NAME:                    | DISTRICT/ADDRESS:              | DATE ADDED:      |
|--------------------------|--------------------------------|------------------|
| <i>Adrian C. Madaro</i>  | <i>1st Suffolk</i>             | <i>1/16/2025</i> |
| <i>Samantha Montaño</i>  | <i>15th Suffolk</i>            | <i>6/25/2025</i> |
| <i>James B. Eldridge</i> | <i>Middlesex and Worcester</i> | <i>9/12/2025</i> |

# HOUSE . . . . . No. 3735

---

By Representative Madaro of Boston, a petition (accompanied by bill, House, No. 3735) of  
Adrian C. Madaro relative to Massachusetts identification cards. Transportation.

---

## The Commonwealth of Massachusetts

\_\_\_\_\_  
In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act relative to Massachusetts identification cards.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority  
of the same, as follows:*

1           SECTION 1. Section 8E of Chapter 90 the General Laws, as appearing in the 2022  
2   Official Edition, is hereby amended by adding, after the sentence ending in line 45, the following  
3   words:-

4           An applicant for an identification card under this section who does not provide proof of  
5   lawful presence, including an applicant who is ineligible for a social security number, shall be  
6   eligible for a Massachusetts identification card if the applicant meets all other qualifications for  
7   an identification card and provides satisfactory proof to the registrar of their identity, date of  
8   birth and Massachusetts residency as stipulated in section 8 of this chapter. When processing an  
9   application for a Massachusetts identification card pursuant to this section, the registrar shall not  
10   inquire about or create a record of an applicant's citizenship or immigration status except as may  
11   be required under 52 U.S.C. or chapter 51 of the General Laws. When processing an application  
12   for registration of a motor vehicle, or a renewal thereof, submitted by an applicant who holds a

Massachusetts identification card the registrar shall not inquire about or create a record of an applicant's citizenship or immigration status.

SECTION 2. Said section 8E of Chapter 90 the General Laws, as so appearing, is hereby further amended by inserting, before the words “identification card” in line 48, the words “REAL ID-compliant”, and by striking out, after the words “identification card” in line 48, the words “of any type”.

SECTION 3. Said section 8E of Chapter 90 the General Laws is hereby further amended by striking out, in line 51, the words “an identification card” and inserting in place thereof “a REAL ID-compliant identification card”.

SECTION 4. Said section 8E of Chapter 90 the General Laws is hereby further amended by inserting, before the words “identification card” in line 60, and again before the words “identification card” in line 62, the words “REAL ID-compliant”.

SECTION 5. Said section 8E of Chapter 90 the General Laws is hereby further amended by inserting, after the sentence ending in line 68, the following sentence:- If, at the expiration of the term of a REAL ID-compliant identification card, the card holder does not provide proof of lawful presence, the card holder shall remain eligible to apply for a Massachusetts identification card.

SECTION 6. Notwithstanding any general or special law to the contrary, any information provided by or relating to an applicant for or a holder of a Massachusetts identification card under section 8E of chapter 90 of the General Laws, including failure to provide proof of lawful presence as defined in section 1 of said chapter 90, including, but not limited to, personally identifying information, photographs, and communications between the applicant and the

35 registrar of motor vehicles pursuant to said section 8E of said chapter 90, shall neither be a  
36 public record nor be disclosed by the registrar, except as required by federal law or as authorized  
37 by regulations promulgated by the attorney general.